

HOUSE BILL 896

By Todd

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 5, relative to regulatory actions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 5, is amended by adding the following new section:

§ 4-5-232. Sound science in regulations act.

(a) An agency shall not disseminate, propose, or finalize any regulatory action by promulgating rules or a similar action for a substance, mixture, or chemical related to drinking water, water pollution control, hazardous substances, contaminated site remediation, air quality, or solid or hazardous waste handling unless:

(1) All scientific and technical information relied on to support the regulatory action is based upon the best available science; and

(2) With respect to human health, the best available science indicates that exposure to the substance, mixture, or chemical that exceeds the level proposed in the regulatory action is causally linked to manifest bodily harm in humans.

(b) For purposes of this section, the term:

(1) "Best available science" means science that:

(A) Is reliable, unbiased, and reasonably applied to the agency's regulatory action;

(B) Maximizes the quality, objectivity, and integrity of information, including statistical information; human, animal, and other relevant scientific studies; and human health risk-based assessments; and

(C) Involves the use of supporting studies that are:

(i) Conducted in accordance with sound and objective scientific practices utilizing data collected by generally accepted methods or best available methods;

(ii) Subject to independent verification; and

(iii) Published in a refereed journal;

(2) "Refereed journal" means a publication that:

(A) Uses an editorial board or critical review panel of subject matter experts in the relevant scientific or technical disciplines who critically and objectively assess the methodology and analysis of submitted scientific studies in a nonpartisan fashion and provide editorial services prior to publication;

(B) Takes meaningful steps to avoid biases in its scientific review process; and

(C) Does not charge publication or submission fees to authors; and

(3) "Regulatory action" means a risk, exposure, or health advisory; hazard assessment, health-based guidance level, enforceable drinking water standard, or hazardous substance or chemical of concern remediation standard; a hazardous substance, solid waste, or hazardous waste designation or determination; criteria document; standard; limitation; public notice; regulation or

legislative rule; regulatory impact analysis; guidance document; or other similar administrative action or scientific or technical assessment or conclusion.

(c) This section only applies to agency regulatory actions that are adopted on or after July 1, 2025, and that are more stringent than any applicable federal regulatory action or adopted in the absence of a federal regulatory action.

(d) This section must not be construed to impact:

(1) Any regulatory action by an agency in existence before July 1, 2025;

(2) Any regulatory action by an agency in furtherance of federal agency primacy requirements; or

(3) Any regulatory action by an agency that is the substantive equivalent to a federal regulation.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.